

M/s Vikas Cool Industries v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 March 2017 · Writ-C No. 9462 of 2017 · **Writ disposed; deposit ₹4 lakh and apply under Clause 5.6.**

HEADNOTE

A consumer alleging a defective meter and inflated bills, who had stopped paying and then faced disconnection and a recovery citation, was not granted a merits ruling on the meter or the demand. Clause 5.6 of the U.P. Electricity Supply Code, 2005 is the route for checking a suspected defective meter. The consumer may apply under that clause; the licensee shall decide and, if necessary, issue a fresh bill. Restoration and a stay of coercive recovery of the balance were made conditional on depositing ₹4 lakh within ten days and filing the Clause 5.6 application.

FACTUAL SUMMARY

M/s Vikas Cool Industries alleged that the meter replaced by Madhyanchal Vidyut Vitran Nigam Ltd. on 7 April 2015 was defective, as bills thereafter were unusually high. It repeatedly sought testing and bill correction; the licensee took no action. The consumer stopped paying. A recovery citation for ₹8,45,017 plus other charges followed, and supply was disconnected. The consumer said excess had already been paid; the licensee justified the citation and disconnection for non-payment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

defective-meter-testing

HOLDING

Clause 5.6 of the U.P. Electricity Supply Code, 2005 governs checking of defective meters. A consumer who doubts meter accuracy must apply to the licensee under that clause; the licensee shall decide and, if necessary, issue a fresh bill. Where supply has already been disconnected and a recovery citation issued, the Court directed that if the consumer deposits ₹4 lakh within ten days and files a Clause 5.6 testing application, the licensee shall restore supply, decide in accordance with law, and take no further coercive action for the balance; failure to deposit withdraws that protection. The writ was disposed of on those directions without a finding that the meter was defective or that the demand was wrong. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

The Court did not test the meter or recast the bills on the writ; it sent the consumer to Clause 5.6 and directed the licensee to decide in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER REPLACED ON 7 APRIL 2015 IS DEFECTIVE

¶ 1

NOT DECIDED — WHETHER THE RECOVERY DEMAND OF ₹8,45,017 PLUS OTHER CHARGES IS DUE

¶ 1